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AS AMENDED

By: Hilbert, Hefner,
Provenzano, West (Josh),
Manger, Williams, Banning,
and Turner of the House

Gollihare, Gillespie, and
Prieto of the Senate

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17 SECTION 1. NEW LAW A new section of law not to be
18 codified in the Oklahoma Statutes reads as follows:

20 SECTION 2. AMENDATORY 10A O.S. 2021, Section 1-2-102, as
21 last amended by Section 2, Chapter 26, O.S.L. 2025 (10A O.S. Supp.
22 2025, Section 1-2-102), is amended to read as follows:

1 Section 1-2-102. A. 1. Upon receipt of a report that a child
2 may be abused, neglected or drug-endangered, the Department of Human
3 Services shall conduct a safety analysis.

4 2. The Department may employ or contract with active or retired
5 social work, medical and law enforcement professionals who shall be
6 strategically placed throughout the state to:

7 a. provide investigation support and to assist
8 caseworkers with assessment decisions and intervention
9 activities,

10 b. serve as consultants to caseworkers in all aspects of
11 their duties, and

12 c. designate persons who shall act as liaisons within the
13 Department whose primary functions are to develop
14 relationships with local law enforcement agencies and
15 courts.

16 3. The Department shall forward a report of its assessment or
17 investigation and findings to any district attorney's office which
18 may have jurisdiction to file a petition pursuant to Section 1-4-101
19 of this title.

20 4. The Department shall determine the military status of
21 parents whose children are subject to abuse or neglect. If the
22 Department determines that a parent or guardian is currently serving
23 on active duty in the United States military, the Department shall
24 notify a United States Department of Defense family advocacy program

1 that there is an investigation into the parent or guardian. The
2 Department shall forward a report of its assessment or investigation
3 and findings to the appropriate military law enforcement entity.

4 5. Whenever the Department determines there is a child that
5 meets the definition of a "drug-endangered child", as defined in
6 Section 1-1-105 of this title, or a child has been diagnosed with
7 fetal alcohol syndrome and the referral is accepted for
8 investigation, the Department shall conduct an investigation of the
9 allegations and shall not limit the evaluation of the circumstances
10 to an assessment.

11 6. Whenever the Department determines an infant has been
12 diagnosed with Neonatal Abstinence Syndrome or a Fetal Alcohol
13 Spectrum Disorder, but the referral is not accepted for
14 investigation, the Department shall develop a plan of safe care that
15 addresses both the infant and affected family member or caregiver.
16 The plan of safe care shall address, at a minimum, the health and
17 substance use treatment needs of the infant and affected family
18 member or caregiver.

19 B. 1. Upon receipt of a report that a child may be drug-
20 endangered or whenever the Department determines there is a child
21 that meets the definition of a "drug-endangered child", as defined
22 in Section 1-1-105 of this title, the Department of Human Services:

23 a. shall initiate a safety analysis within twenty-four
24 (24) hours, and

1 b. shall attempt to acquire consent for an immediate drug
2 screening for any parent, guardian, or caregiver if
3 substance use is suspected or confirmed, including,
4 but not limited to, methamphetamine production or use,
5 opioid exposure, or any indication of fentanyl
6 presence, including indication via report,
7 observation, or prior history. Prior history shall
8 include, but shall not be limited to, prior history
9 documented by the Department and publicly available
10 court records on the Oklahoma State Courts Network
11 website. If the parent, guardian, or caregiver
12 refuses to consent to a drug screening and substance
13 use is suspected or confirmed following a safety
14 analysis, the Department shall notify a district
15 attorney within twenty-four (24) hours to request a
16 court order compelling the parent, guardian, or
17 caregiver submit to a drug screening. If the parent,
18 guardian, or caregiver refuses to consent to a drug
19 screening and the court orders the parent, guardian,
20 or caregiver to submit to a drug screening, the
21 district court judge shall also order such parent,
22 guardian, or caregiver to pay the drug screening cost.
23 All drug screenings shall include mandatory fentanyl
24 testing.

1 2. Drug testing shall occur:

- 2 a. at intake for investigations and removals, pursuant to
3 subsection B of this section,
4 b. as part of ongoing monitoring in open cases, or upon
5 reasonable suspicion, and
6 c. prior to any reunification, visitation expansion, or
7 case closure.

8 3. If, upon receipt of a report alleging that a child is drug-
9 endangered, the Department determines that drug activity is
10 indicated or that the child meets the definition of a "drug-
11 endangered child", as defined in Section 1-1-105 of this title, the
12 Department shall immediately make a referral, either verbally or in
13 writing, to the appropriate local law enforcement agency for the
14 purpose of conducting a possible criminal investigation.

15 C. 1. If, upon receipt of a report alleging abuse or neglect
16 or during the assessment or investigation, the Department determines
17 that:

- 18 a. the alleged perpetrator is someone other than a person
19 responsible for the child's health, safety, or
20 welfare, and
21 b. the alleged abuse or neglect of the child does not
22 appear to be attributable to failure on the part of a
23 person responsible for the child's health, safety, or
24 welfare to provide protection for the child,

1 the Department shall immediately make a referral, in writing, to the
2 appropriate local law enforcement agency for the purpose of
3 conducting a possible criminal investigation. The Department shall
4 maintain a record of its transmission of each report to law
5 enforcement.

6 2. After making the referral to the law enforcement agency, the
7 Department shall not be responsible for further investigation
8 unless:

- 9 a. the Department has reason to believe the alleged
10 perpetrator is a parent of another child, not the
11 subject of the criminal investigation, or is otherwise
12 a person responsible for the health, safety, or
13 welfare of another child,
- 14 b. notice is received from a law enforcement agency that
15 it has determined the alleged perpetrator is a parent
16 of or a person responsible for the health, safety, or
17 welfare of another child not the subject of the
18 criminal investigation, or
- 19 c. the appropriate law enforcement agency requests the
20 Department to assist in the investigation. If funds
21 and personnel are available, as determined by the
22 Director of the Department or a designee, the
23 Department may assist law enforcement in interviewing
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1 children alleged to be victims of physical or sexual
2 abuse.

3 3. If, upon receipt of a report alleging abuse or neglect or
4 during the assessment or investigation, the Department determines
5 that the alleged abuse or neglect of the child involves:

6 a. a child in the custody of the Office of Juvenile
7 Affairs, and

8 b. at the time of the alleged abuse or neglect, such
9 child was placed in a secure facility operated by the
10 Office of Juvenile Affairs, as defined by Section 2-1-
11 103 of this title,

12 the Department shall immediately make a referral, either verbally or
13 in writing, to the appropriate law enforcement agency for the
14 purpose of conducting a possible criminal investigation. After
15 making the referral to the law enforcement agency, the Department
16 shall not be responsible for further investigation.

17 ~~C.~~ D. 1. Any law enforcement agency receiving a referral as
18 provided in this section shall provide the Department with a copy of
19 the report of any investigation resulting from a referral from the
20 Department.

21 2. Whenever, in the course of any criminal investigation, a law
22 enforcement agency determines that there is cause to believe that a
23 child, other than a child in the custody of the Office of Juvenile
24 Affairs and placed in an Office of Juvenile Affairs secure juvenile

1 facility, may be abused or neglected by reason of the acts,
2 omissions, or failures on the part of a person responsible for the
3 health, safety, or welfare of the child, the law enforcement agency
4 shall immediately contact the Department for the purpose of an
5 investigation.

6 ~~D.~~ E. If, upon receipt of a report alleging abuse or neglect,
7 the Department determines that the family has been the subject of a
8 deprived petition, the Department shall conduct a thorough
9 investigation of the allegations and shall not limit the evaluation
10 of the circumstances to an assessment. In addition, if the family
11 has been the subject of three or more referrals, the Department
12 shall conduct a thorough investigation of the allegations and shall
13 not limit the evaluation of the circumstances to an assessment.

14 ~~E.~~ F. For the purposes of this section, "law enforcement" shall
15 include military law enforcement if the subject of an investigation
16 of abuse or neglect is currently serving in any branch of the United
17 States military.

18 ~~F.~~ G. The Department shall promulgate rules by November 1,
19 2026, to implement the provisions of this section.

20 SECTION 3. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 10A of Title 1-4-717, unless
22 there is created a duplication in numbering, reads as follows:
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1 A. The district court judge may order the family, or a member
2 of the family, a guardian, or a caregiver who is subject to fentanyl
3 testing under this act to pay drug testing costs.

4 B. The Department of Human Services shall cover the cost when
5 the individual:

6 1. Is enrolled in a state or federal voucher program;

7 2. Receives qualifying public assistance; or

8 3. Demonstrates financial hardship via affidavit.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 10A of Title 1-4-718, unless
11 there is created a duplication in numbering, reads as follows:

12 A. There is hereby created in the State Treasury a revolving
13 fund for the Department of Human Services to be designated the
14 "Child Welfare Fentanyl Testing Revolving Fund". The fund shall be
15 a continuing fund, not subject to fiscal year limitations, and shall
16 consist of the fifty-dollar fee imposed pursuant to paragraph 2 of
17 subsection D of Section 5 of this act. All monies accruing to the
18 credit of said fund are hereby appropriated and may be budgeted and
19 expended by the Department of Human Services for the purpose of
20 offsetting drug testing costs of the Department of Human Services.
21 Expenditures from said fund shall be made upon warrants issued by
22 the State Treasurer against claims filed as prescribed by law with
23 the Director of the Office of Management and Enterprise Services for
24 approval and payment.

1 B. The Oklahoma State Auditor and Inspector shall audit the
2 fund annually.

3 C. The Department of Human Services shall submit an annual
4 report by December 31 to the Speaker of the Oklahoma House of
5 Representatives and the President Pro Tempore of the Oklahoma State
6 Senate that includes, but is not limited to, testing volumes, costs,
7 positive rates, and fund balance, including impacts on child safety
8 outcomes.

9 SECTION 5. AMENDATORY 21 O.S. 2021, Section 852.1, as
10 amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
11 2025, Section 852.1), is amended to read as follows:

12 Section 852.1. A. A person who is the parent, guardian, or
13 person having custody or control over a child as defined in Section
14 1-1-105 of Title 10A of the Oklahoma Statutes, commits child
15 endangerment when the person:

16 1. Knowingly permits physical or sexual abuse of a child;

17 2. Knowingly permits a child to be present at a location where
18 a controlled dangerous substance is being manufactured or attempted
19 to be manufactured as defined in Section 2-101 of Title 63 of the
20 Oklahoma Statutes;

21 3. Knowingly and willfully permits or causes a child under
22 eighteen (18) years of age to be placed in a situation where the
23 life, health, or safety of the child is endangered, as defined in
24 subsection B of this section;

1 4. Knowingly permits a child to be present in a vehicle when
2 the person knows or should have known that the operator of the
3 vehicle is impaired by or is under the influence of alcohol or
4 another intoxicating substance; or

5 ~~4.~~ 5. Is the driver, operator, or person in physical control of
6 a vehicle in violation of Section 11-902 of Title 47 of the Oklahoma
7 Statutes while transporting or having in the vehicle such child or
8 children.

9 However, it is an affirmative defense to this paragraph if the
10 person had a reasonable apprehension that any action to stop the
11 physical or sexual abuse or deny permission for the child to be in
12 the vehicle with an intoxicated person would result in substantial
13 bodily harm to the person or the child.

14 Nothing in this subsection shall prohibit the prosecution of a
15 person pursuant to the provisions of Section 11-902 or 11-904 of
16 Title 47 of the Oklahoma Statutes.

17 B. "Endangerment" includes, but is not limited to, exposing a
18 child to fentanyl or fentanyl analogs through possession, use,
19 distribution, or environmental contamination in the home.

20 C. The provisions of this section shall not apply to any
21 parent, guardian or other person having custody or control of a
22 child for the sole reason that the parent, guardian or other person
23 in good faith selects and depends upon spiritual means or prayer for
24 the treatment or cure of disease or remedial care for such child.

1 This subsection shall in no way limit or modify the protections
2 afforded said child in Section 852 of this title or Section 1-4-904
3 of Title 10A of the Oklahoma Statutes.

4 ~~C.~~ D. 1. Any person convicted of violating any provision of
5 this section shall be guilty of a Class B6 felony offense punishable
6 by imprisonment in the custody of the Department of Corrections for
7 a term of not more than four (4) years, or by a fine not exceeding
8 Five Thousand Dollars (\$5,000.00), or by both such fine and
9 imprisonment.

10 2. If fentanyl was present or detected in the endangerment that
11 led to the conviction, the person convicted shall be guilty of a
12 felony punishable by imprisonment in the custody of the Department
13 of Corrections for a term of not more than five (5) years, or by a
14 fine not exceeding Five Thousand Dollars (\$5,000.00), or by both
15 such fine and imprisonment. Such person shall also pay a mandatory
16 fee of Fifty Dollars (\$50.00) to the State Treasury to be deposited
17 in the Child Welfare Fentanyl Testing Revolving Fund, pursuant to
18 Section 4 of this act.

19 SECTION 6. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1-2-102.1 of Title 10A, unless
21 there is created a duplication in numbering, reads as follows:

22 A. 1. Upon referral from the Department of Human Services or a
23 law enforcement agency, when a child has been determined to be a
24 "drug-endangered child", and the residence into which the child

1 would be returned has been identified as a location where drug
2 activity has occurred or is suspected, including but not limited to
3 the manufacture, distribution, use, storage, or environmental
4 contamination of controlled dangerous substances, the premises shall
5 be subject to environmental assessment prior to reunification.

6 2. A referral for environmental assessment and, if necessary,
7 remediation shall be made by the designated Department of Human
8 Services case manager or the jurisdictional law enforcement agency
9 to the appropriate local, county, or state authority responsible for
10 environmental health, hazardous substance response, public health,
11 or code enforcement prior to the child being returned to the
12 residence.

13 B. 1. Environmental testing shall include surface sampling for
14 fentanyl and fentanyl analogs when fentanyl possession, use,
15 distribution, storage, or overdose has occurred on the premises,
16 drug paraphernalia containing suspected opioid residue has been
17 identified, or reasonable suspicion of fentanyl contamination
18 exists.

19 2. A residence shall be deemed unsafe for occupancy by a child
20 if fentanyl contamination exceeds 0.1 micrograms per one hundred
21 (100) square centimeters (0.1µg/100 cm²) on any accessible surface.

22 3. If contamination exceeds 0.1 micrograms per one hundred
23 (100) square centimeters (0.1µg/100 cm²) and does not meet criteria
24 for elevated designation pursuant to subsection C of this section,

1 remediation shall be conducted by a contractor qualified in
2 hazardous substance remediation pursuant to applicable state
3 environmental standards.

4 4. Remediation shall continue until post-remediation clearance
5 testing demonstrates contamination levels at or below 0.05
6 micrograms per one hundred (100) square centimeters (0.05 µg/100 cm²)
7 on all tested accessible surfaces.

8 5. Testing and remediation conducted pursuant to this
9 subsection shall be performed by qualified contractors certified in
10 hazardous substance remediation.

11 C. 1. In any residence where the manufacture, distribution,
12 use, storage, or elevated level of exposure to fentanyl or fentanyl
13 analogs is suspected, admitted, or identified through investigation,
14 the Department of Human Services or the jurisdictional law
15 enforcement agency may designate the premises as an Elevated
16 Fentanyl Exposure Risk Property.

17 2. An Elevated Fentanyl Exposure Risk Property designation
18 shall be applied when one or more specified heightened contamination
19 conditions exist, including multiple-room contamination, bulk
20 quantities, overdose occurrence, vulnerable child presence, or other
21 heightened environmental contamination risks.

22 D. 1. Upon designation as an Elevated Fentanyl Exposure Risk
23 Property, remediation shall be conducted exclusively by a
24 specialized biohazard cleanup company qualified in hazardous drug

1 decontamination and certified pursuant to applicable state
2 environmental and occupational safety standards.

3 2. Remediation shall include comprehensive environmental
4 assessment, removal and lawful disposal of contaminated porous
5 materials, High Efficiency Particulate Air (HEPA) vacuuming and
6 chemical neutralization of affected surfaces, ventilation system
7 inspection or replacement if necessary, and independent post-
8 remediation clearance testing.

9 3. Cleaning performed solely by an occupant, landlord, or
10 noncertified contractor shall not satisfy the requirements of this
11 subsection.

12 E. The Department shall not recommend reunification of a child
13 to any residence subject to this section unless environmental
14 assessment has been completed, contamination exceeding statutory
15 thresholds has been remediated, clearance testing verifies
16 contamination levels at or below 0.05 micrograms per one hundred
17 (100) square centimeters (0.05 $\mu\text{g}/100\text{ cm}^2$), and the premises has been
18 certified safe for occupancy.

19 F. 1. If the residence is leased or rented, written notice of
20 contamination or Elevated Fentanyl Exposure Risk Property
21 designation shall be provided to the property owner or landlord.

22 2. A property owner receiving notice shall ensure testing
23 within fifteen (15) days, complete required remediation prior to re-
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1 occupancy by a child, and maintain documentation for a minimum of
2 five (5) years.

3 3. A landlord shall not knowingly permit re-occupancy of a
4 contaminated dwelling by a child prior to required remediation and
5 clearance.

6 4. A property owner who knowingly fails to remediate and
7 permits occupancy by a child shall be subject to a civil fine not to
8 exceed Five Thousand Dollars (\$5,000.00) per violation and potential
9 referral for prosecution under applicable child endangerment
10 statutes.

11 5. No liability shall attach to a landlord who lacked actual or
12 constructive knowledge and promptly complied upon receiving notice.

13 G. 1. The district court may order the parent, guardian,
14 caregiver, or property owner to bear the cost of environmental
15 testing and remediation.

16 2. If the court determines financial hardship exists, the
17 Department may utilize available state or federal funds consistent
18 with appropriations.

19 H. The Department of Human Services shall promulgate rules
20 necessary to implement this section within sixty (60) days of the
21 effective date of this act.

22 SECTION 7. NEW LAW A new section of law not to be
23 codified in the Oklahoma Statutes reads as follows:

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1 The requirements of this act shall be carried out within
2 existing appropriations and designated funds, including the Child
3 Welfare Fentanyl Testing Revolving Fund created in Section 4 of this
4 act, and shall not require the Department of Human Services to
5 create new data systems or hire additional full-time employees.

6 SECTION 8. This act shall become effective November 1, 2026.

7 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
8 April 22, 2026 - DO PASS AS AMENDED
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